

TENTATIVE RULING

Case: **Capital One, N.A. v. Cesaire**
 Case No. CV-2025-3423

Hearing Date: **January 20, 2026** **Department Eleven** **9:00 a.m.**

Defendant Jerry Cesaire's unopposed motion to compel arbitration and to stay proceedings is **GRANTED**. (Code Civ. Proc., §§ 1281.2, 1281.4; Cesaire decl., ¶¶ 1-6, Exhibit A.)

This case is **STAYED** pending the completion of arbitration. (Code Civ. Proc., § 1281.4.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: Flores-Campbell et al. v. County of Yolo
Case No. CV-2023-2399

Hearing Date: January 20, 2026 **Department Eleven** **9:00 a.m.**

The Court declines to consider plaintiffs Michele Flores-Campbell and Ryan Campbell's sur-reply and supplemental opposition to motion for issuance of order to show cause. (See Code Civ. Proc., § 1005, subd. (b).)

Defendant/cross-complainant County of Yolo's motion for issuance of order to show cause re: sanctions and contempt, and for attorneys' fees and costs is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 1209, subd. (a)(5), 1211, subd. (a).) In an indirect contempt matter, "an affidavit must be presented to the court stating the facts constituting the contempt, an order to show cause must be issued, and a hearing on the facts must be held by the judge." (Code Civ. Proc., § 1211, subd. (a); *Arthur v. Superior Court of Los Angeles County* (1965) 62 Cal.2d 404, 408; see *In re Marcus* (2006) 138 Cal.App.4th 1009, 1014.) The Court finds that the affidavit submitted by attorney Eric May on behalf of County of Yolo fails to state all the requisite facts constituting the claimed contempt. (*In re Ivey* (2000) 85 Cal.App.4th 793, 798; May Decl., ¶¶ 2, 3, Exhibit A; see May Sup. Decl., ¶¶ 2, 3; Opposition, §§ II, III.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.